NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
BENCH-V

CA (CAA)-75/230-232/ND/2020

UNDER SECTION 230-232 AND OTHER PROVISIONS OF THE COMPANIES ACT, 2013 R/W COMPANIES (COMPROMISES, ARRANGEMENTS AND AMALGAMATION) RULES, 2016

IN THE MATTER OF:

QUICKCALLS PVT. LTD. **(Applicant Company No. 1)**

AND

BHILWARA TELENET SERVICES PVT. LTD. **(Applicant Company No. 2)**

AND

SMARTALK PVT. LTD. **(Applicant Company No. 3)**

AND

PROCALL PVT. LTD **(Applicant Company No. 4)**

AND

ARRAY TEAM CALL PVT. LTD. **(Applicant Company No. 5)**

Order Reserved on: 28.10.2021

Order pronounced on: 15.11.2021

CORAM:

SH. ABNI RANJAN KUMAR SINHA, HON'BLE MEMBER (J)

SH. AVINASH K. SRIVASTAVA, HON'BLE MEMBER (T)

PRESENT:

For the Applicant : Vikrant Rohilla, Adv.

For the Respondent : Easha Kadian, Sanjay Kumar, Standing Counsels for Income Tax Department

Along with Himanshu, Adv.

MEMO OF PARTIES

C.A. (CAA) NO. 75 OF 2020

UNDER SECTIONS 230-232 OF THE COMPANIES ACT, 2013

IN THE MATTER OF THE COMPANIES ACT, 2013 AND IN THE MATTER OF COMPOSITE SCHEME OF ARRANGEMENT IN THE NATURE OF DEMERGER AND AMALGAMATION

QUICKCALLS PVT. LTD.
having its registered office at C-61/2,
2nd Floor, Arjun Nagar, Behind B-7,
Safdarjung Enclave, New Delhi 110029 ... Applicant Company No. 1

AND

BHILWARA TELENET SERVICES PVT. LTD.
having its registered office at C-61/2,
2nd Floor, Arjun Nagar, Behind B-7,
Safdarjung Enclave, New Delhi 110029 ...Applicant Company No. 2

AND

SMARTALK PVT. LTD.
having its registered office at C-61/2,
2nd Floor, Arjun Nagar, Behind B-7,
Safdarjung Enclave, New Delhi 110029 ... Applicant Company No. 3

AND

PROCALL PVT. LTD.
having its registered office at C-61/2,
2nd Floor, Arjun Nagar, Behind B-7,
Safdarjung Enclave, New Delhi 110029 ... Applicant Company No. 4

AND

ARRAY TEAM CALL PVT. LTD.
having its registered office at 1005,
Plot No. 7, Roots Tower, Laxmi Nagar
District Center, Delhi – 110092 ... Applicant Company No. 5

ORDER

PER- AVINASH K. SRIVASTAVA, MEMBER (TECHNICAL)

1. This matter was earlier heard before the bench comprising of Sh. Abni Ranjan Kumar Sinha, Member (Judicial) and Sh. K.K. Vohra, Member (Technical), NCLT, New Delhi, the matter was referred to the Hon'ble Acting President, NCLT, New Delhi under the provisions of 419(5) of the Companies Act, 2013 for constituting a larger bench to decide the issue of dispensation of meeting of the equity shareholders. The Hon'ble Acting President, NCLT, New Delhi, himself decided the matter and passed the following order: *"In view thereby, I hereby agree with the view taken by Sh. K.K. Vohra, Hon'ble Member (Technical) holding that NCLT cannot dispense with holding meetings under Section 230(1) of the Companies Act, 2013."* Hence, the order passed by majority will prevail.

2. Order dated 06.10.2020 passed by bench comprising of Sh. Abni Ranjan Kumar Sinha, Member (Judicial) and Sh. K.K. Vohra, Member (Technical), NCLT, New Delhi and order dated 31.05.2021 passed by Hon'ble Acting President are on record.

3. Thereafter, Order dated 14.07.2021 was passed by bench comprising of Sh. Abni Ranjan Kumar Sinha and Sh. K.K. Vohra vide which the Applicant Companies were directed to convene the meeting of the shareholders on 31.08.2021 through video

conferencing. In compliance, Applicant Companies have convened the meeting and newspaper publication dated 27.07.2021 for the convening of meeting is placed on record.

4. Chairperson's Report dated 02.09.2021 given by Mr. Gulshan Gaba, who is the Appointed Chairman for the meeting of the equity shareholders of the Applicant Companies 1 to 5 has stated that the equity shareholders of each of 5 Applicant Companies have approved the scheme 100%, both in number and value and is placed on record.

5. Scrutinizer's Report dated 01.09.2021 given by Mr. Pawan K. Goel, who is the appointed scrutinizer for the meeting of the equity shareholders of the Applicant Companies 1 to 5, is placed on record.

In terms of the Chairperson's Report dated 02.09.2021, the application CA(CAA)-75/2020 stands disposed of. Liberty is granted to Applicant Companies to take appropriate action further.

Let the copy of the order be served to the parties.

Sd/-

AVINASH K. SRIVASTAVA

MEMBER (TECHNICAL)

Sd/-

ABNI RANJAN KUMAR SINHA

(MEMBER JUDICIAL)